

STATE OF NEW YORK

3393--A

Cal. No. 356

2025-2026 Regular Sessions

IN SENATE

January 27, 2025

Introduced by Sens. GOUNARDES, MAY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, in relation to requiring pharmacies that are permanently discontinuing to notify customers of such discontinuance

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 6811-d
2 to read as follows:

3 § 6811-d. Notification of permanent pharmacy discontinuance. 1. Every
4 registered pharmacy that sells prescription drugs at retail shall
5 provide public notice at least thirty days prior to its permanent
6 discontinuance. Such notice shall:

7 (a) be provided, to the extent possible, to customers who have had a
8 prescription filled at the pharmacy within the year prior to its discon-
9 tinuance through the customer's primary means of communication with such
10 pharmacy; and

11 (b) be conspicuously posted at or adjacent to the place in the pharma-
12 cy where prescriptions are presented for compounding and dispensing, in
13 the waiting area for customers, or the area where prescribed drugs are
14 dispensed.

15 2. The notification required pursuant to subdivision one of this
16 section shall include, but not be limited to:

17 (a) the date of such pharmacy's discontinuance;

18 (b) the names, addresses, and phone numbers of the five nearest phar-
19 macies, including independently owned pharmacies, if applicable;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD05757-03-5

1 (c) instructions on transferring any existing prescriptions to another
2 pharmacy; and
3 (d) information regarding the disposition of prescription records if a
4 customer fails to transfer a prescription prior to such pharmacy's
5 discontinuance.

6 § 2. This act shall take effect on the sixtieth day after it shall
7 have become a law.